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United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Adverse Opinion Reversing Preliminary Relief

Filed May 22, 2026

Judge Quill delivered the opinion of the Court, in which Judges Fen and Vale joined. The City of Norvale appeals a preliminary injunction preventing application of its Paid-Speaker Permit Ordinance to six 2026 book fairs organized by the Piedmont Booksellers Guild. The appeal was submitted on the briefs by order entered May 18. PA172–173.

We exercise jurisdiction under 28 U.S.C. § 1292(a)(1). The passage of the first two dates does not moot a dispute involving four announced fairs, the same organizer, and an unchanged municipal rule. On the present evidentiary record, however, the Guild did not clearly establish likely success or a favorable balance under *Winter*. The district court treated compensation as though Norvale claimed it caused danger, discounted evidence supporting its use as an objective marker of an organized presentation, and gave insufficient effect to neutral constraints on administration.

We reverse the grant of preliminary relief and remand for continued proceedings on the unresolved complaint. Because no preliminary injunction remains to be corrected, we deny the City's separate request for a limited remand under Federal Rule of Civil Procedure 65(c) and 65(d). We do not decide the ultimate constitutionality of every application, authorize viewpoint review, or enter final judgment on the merits.

I. The Guild and Its Recurring Events

The Guild is a nonprofit association of booksellers, librarians, publishers, and readers that has organized Saturday fairs at Cedar Commons since 2019. Admission is free. Eighteen to twenty-eight sellers ordinarily participate, and four to seven authors receive modest honoraria for readings, discussions, and questions that listeners attend without charge. JA1–8, JA34–48.

No Guild fair has produced violence, arrest, closure, or property damage. The record instead describes two minor medical calls and ordinary administration: a brief unloading delay, boxes near a service route, and listeners narrowing a central walk while moving from a reading to a signing table. Staff and volunteers managed those events through directions and layout adjustments. JA30–33, JA44–48, JA54–64.

The Guild reserved six 2026 dates. It can identify a footprint and approximate attendance well ahead, but publication schedules, travel, caregiving, and limited budgets keep author rosters fluid. Some writers confirm during the final month, and early identity commitments may cause the organizer to abandon an invitation. Those facts show a genuine burden on protected planning. JA34–43, JA58–64.

Norvale accepts the need for flexibility but notes that reservations, transit conditions, weather, and staffing vary by date. A changed identity may be immaterial, while altered equipment, format, duration, or attendance may require new coordination. We treat paid literary programs as protected speech. The question is whether the Guild clearly demonstrated that this content-neutral process likely fails the applicable tailoring standard.

II. Ordinance N-2025-18

Norvale adopted the ordinance on August 18, 2025, and issued the standardized application and schedule on November 3. A recurring public event with at least one compensated scheduled speaker must submit a separate application for each date forty-five calendar days in advance. It lists each paid speaker's name, a brief topic and time, the event footprint, anticipated attendance, traffic proposal, and emergency contact. JA15–22.

The scheduled charge is \$240 for an event and \$45 for each paid presenter. The enactment assigns the base amount to intake, routing, site review, coordination, and a written decision. The increment is attributed to reviewing another scheduled presentation and associated audience movement. A vendor who sells books but does not address an audience does not activate the added provisions. JA15–22.

Conditions and denials must rest on documented crowd, traffic, emergency, sanitation, competing-use, or municipal-resource risks. Officials must give written reasons. The ordinance bars favoring or disfavoring a viewpoint, and the form allows a broad description such as “novelist reading and questions.” A later change may be submitted, although the enactment establishes neither a categorical entitlement to approval nor a fixed response period. JA15–22.

For a program with six compensated authors, the total is \$510. Repeating the same number at all six announced dates would generate \$3,060 before honoraria and the Guild's other expenses. The economic effect is relevant, particularly for a nonprofit supported by small members. It does not by itself establish whether the schedule recovers permissible administrative costs.

III. Evidence Supporting the Municipal Process

The legislative materials identify the site's physical constraints and the tasks performed before recurring events. Cedar Commons lies beside transit boarding areas, a loading edge, a crosswalk, and a service entrance. A fountain and planting bed narrow part of the central route. Staff compare simultaneous reservations, examine seating and equipment plans, establish delivery windows, preserve access, estimate sanitation needs, and decide whether ordinary personnel can cover a date. JA23–29, JA49–64.

Council materials considered broader attendance and site thresholds. Staff noted that a total estimate can miss a concentrated program and that a known presentation supplies a time when listeners may gather and disperse. They selected compensation as an administrable indication that the organizer has arranged and controls an appearance, not as a measure of an idea's worth or likely hostility. The record candidly recognizes that unpaid speakers may attract crowds and that not every paid speaker will do so. JA23–29.

The pilot history is limited but consistent with the stated design. Two completed applications were approved with conditions concerning a measured emergency corridor and a bus boarding area. An incomplete applicant was asked for missing logistical information. No application was denied, no event was closed, and no decision assessed ideology. Time records group related tasks and do not isolate the minutes spent on each presenter. JA30–33.

Those limits matter. The pilot cannot prove how every late substitution will be handled or whether every \$45 increment precisely equals staff time. But a preliminary record need not contain mature experience under a newly adopted law. The question is whether the evidence adequately connects the challenged process to significant interests, not whether administration has already produced every conceivable dispute.

IV. District-Court Proceedings

The Guild filed a verified complaint and moved for preliminary relief on January 5. Norvale answered and opposed. The parties provided the ordinance, legislative and pilot records, declarations from three Guild witnesses and two City officials, photographs, a site map, calendar and reservation materials, dispatch summaries, and stipulated facts with an alternatives chart. The court held an evidentiary hearing on January 19. JA1–114.

On January 23, the court found the ordinance content neutral and rejected a present claim of viewpoint discrimination. It nevertheless held that the Guild likely would prove inadequate tailoring because paid status does not directly measure crowd or safety consequences. It also relied on the early identity and topic submission, the uncertainty surrounding amendments, and the incremental charge. The court found likely irreparable expressive injury and concluded that the balance and public interest favored protection. JA115–124.

The operative command enjoined the City and persons acting with it from enforcing the ordinance against the announced fairs. It preserved neutral rules governing reservation priority, capacity, traffic, emergency access, sanitation, layout, competing uses, and materially changed event conditions. The order did not set security or state which provisions within the combined enactment remained usable. JA123–124.

Norvale sought a stay below, the Guild opposed, and the City replied. The district court denied suspension on January 28 after applying the governing factors. The City then filed a timely notice of appeal on January 29. The certified record contains the entire merits and stay sequences, and no additional transcript was designated. JA125–149. Those interim rulings preserved the parties' positions but did not settle this appeal.

V. Appellate Jurisdiction

Section 1292(a)(1) authorizes review of interlocutory orders granting injunctions. The January 23 order commands Norvale to refrain from applying a named municipal enactment during six identified events. It has immediate coercive effect even though the complaint remains pending. The City's notice, filed six days after entry, brings that preliminary order within our jurisdiction. JA115–124, JA144.

Our authority is correspondingly limited. We review the grant of interim relief, including legal and factual premises necessary to that decision. We do not exercise final-judgment jurisdiction over the unresolved complaint. Discovery may yield further information, the City may alter its law, and the district court may reach a different conclusion on a complete merits record without contradicting today's review of the preliminary showing.

The City's arguments under Rule 65(c) and 65(d) concern the same order and fall within our review. They are analytically distinct from whether the Guild established the *Winter* factors. If entitlement were affirmed, a defective bond decision or imprecise command could require focused correction. Because we reverse entitlement, no continuing preliminary order will remain for that corrective remedy.

Submission without oral argument was proper. The briefs and appendix adequately set out the jurisdictional, mootness, preliminary-relief, and Rule 65 questions, and the panel unanimously determined that argument would not materially assist decision. PA172–173. Nothing about that procedural choice alters the standard of review or the burden borne by the party that obtained the injunction.

VI. The Controversy Is Not Moot

Norvale argues that passage of the February and April fairs removes the immediate dispute. It does not. Four announced dates remain: June 13, August 8, October 10, and December 12. The ordinance remains in force, the same Guild continues scheduling compensated authors at the same park, and the injunction continues restricting the City's administration. The parties therefore retain concrete adverse interests. JA34–48, JA58–64, JA115–124.

Our decision in *Robinson v. National Collegiate Athletic Association*, No. 25-2003 (4th Cir. Apr. 3, 2026), cautions against isolating one expired date when an operative rule repeatedly governs the same party's short events. This record supplies direct continuity: one announced series, one organizer, one municipality, one site, and one enactment. We need not decide whether every seasonal controversy qualifies for an exception to mootness.

Nor does the pending district action make interlocutory consequences abstract. The preliminary injunction determines which rules govern current planning. Reversal changes the legal relationship during the remaining dates, subject to ordinary issuance of judgment and mandate. Affirmance would leave the restraint in place while litigation continues. Either result has present significance.

We therefore deny the request to dismiss for mootness. That conclusion does not favor either party on tailoring. A live dispute can yield an adverse merits decision for the party that secured temporary relief. We proceed to the *Winter* analysis on the record made below, without relying on later permit results or filings from a different appellate course.

VII. Preliminary-Injunction Review

Under *Winter v. Natural Resources Defense Council, Inc.* and *Pashby v. Delia*, 709 F.3d 307 (4th Cir. 2013), the movant must clearly establish likely success on the merits, likely irreparable injury absent relief, that the equities favor an injunction, and that the injunction serves the public interest. A possibility on one factor cannot substitute for the required showing on another.

We review legal conclusions without deference, factual findings for clear error, and the ultimate decision for abuse of discretion. A district court abuses its discretion when an error of law shapes its weighing, when a material finding lacks support, or when the remedy rests on an impermissible balance. Review remains respectful of supported factual choices, but a preliminary order is not insulated merely because the record could support some concern.

Content-neutral speech regulation must be narrowly tailored to serve a significant governmental interest and preserve adequate channels. *Billups v. City of Charleston*, 961 F.3d 673 (4th Cir. 2020), requires evidence connecting the burden chosen to the interests asserted and meaningful attention to substantially less restrictive alternatives. That requirement is not a least-restrictive-means test. The government may use an administrable category that materially advances its interests without proving that every covered instance creates equal risk.

The district court recited these principles but applied them as if Norvale had to demonstrate that compensation itself produces congestion. That framing obscured the City's actual justification: paid status marks a presentation arranged and controlled by an organizer, after which direct operational fields guide review. This legal error affected each preliminary factor.

VIII. Protected Speech and Neutrality

The Guild's author readings, discussions, and question periods receive First Amendment protection. Compensation does not convert expressive activity into unprotected conduct. *Billups* rejected an occupational label as a reason to avoid scrutiny of paid tour-guide speech, and its principle applies comfortably to authors who receive modest honoraria. The surrounding sale of books likewise does not strip the free program of protection.

Norvale therefore must justify the burdens it imposes. At the same time, the evidence supports the finding that the ordinance is content neutral. Coverage depends on a scheduled compensated presentation, not whether the speaker addresses politics, religion, fiction, City policy, or another subject. A broad topic line is accepted, and the operative standards concern physical and resource conditions. JA15–33.

The record reveals no hostile-motive statement, content-based denial, or disparate fee. The two pilot approvals used site conditions, and the form expressly rejects viewpoint consideration. The Guild reasonably fears that identity and subject information could facilitate misuse, but the preliminary evidence does not show such misuse. We assess the rule according to its neutral design and demonstrated administration.

Neutrality is not conclusive. A neutral law can burden substantially more speech than needed. It does, however, matter to fit, alternative channels, and equitable risk. The district court appropriately rejected the assertion that Norvale sought to censor authors, yet its later analysis gave too little effect to the objective trigger and written constraints the City selected to avoid discretionary predictions about content or popularity.

IX. The Compensated-Presentation Trigger

The challenged trigger separates an organized presentation from ordinary table conversation through a fact within the organizer's knowledge. Payment reflects a formal invitation and a commitment to place the participant on the program. It need not predict audience size perfectly to assist administration. Once coverage is established, the application asks the facts that bear directly on logistics: time, format, equipment, location, site plan, expected attendance, traffic, and emergency contacts. JA15–29.

The record gives those requirements a concrete setting. A reading ends at a known time and may move listeners toward a signing table. Chairs and standing patrons affect the fountain route. Deliveries interact with a transit edge and service entrance. Employees compare other reservations and staffing across dates. City witnesses described these tasks from experience, and photographs and dispatch summaries corroborate the physical relationships without depicting disorder. JA44–64.

The district court reasoned that the City could ask about every scheduled presentation without regard to pay. Perhaps it could. Yet Norvale was not required to prove that no broader presentation definition would work. An unpaid conversation at a table can shade into an address, and popularity estimates may invite their own judgment. Compensation offers a stable, verifiable line that avoids asking staff to classify speech by substance.

There are mismatches: an unpaid celebrity may draw a crowd, and a paid regional poet may not. Narrow tailoring tolerates reasonable underinclusion and overinclusion when the category materially advances a significant interest and leaves speech available. On this preliminary evidence, the Guild did not clearly show that those mismatches render the trigger constitutionally excessive.

X. Advance Information and Amendments

Names, broad topics, and times impose burdens, particularly when a program changes close to the event. But they also perform neutral functions. A name identifies the person whose substitution or schedule is being discussed. A general topic distinguishes a reading from a panel or signing alongside the form's direct format and equipment fields. A time locates the expected audience transition. None authorizes officials to approve literary content. JA15–22.

The forty-five-day period corresponds to the City's recurring-event planning cycle. Staff allocate shared space, compare reservations, coordinate transit and loading, and arrange personnel before the public date. The Guild can submit authors known at that point and request later amendments. Its witnesses established that late invitations occur, but they did not identify a completed same-slot substitution that Norvale rejected or delayed until an appearance was lost. JA30–48.

The enactment would be stronger if it supplied a response deadline and a materiality definition. Imperfect drafting does not by itself establish likely invalidity. Written reasons must tie a condition or denial to specified operational categories, and viewpoint remains forbidden. Those constraints provide a judicially reviewable boundary if a late request produces a dispute.

The alternatives chart proposes automatic approval of same-slot changes, focused update duties, attendance thresholds, and direct fact collection. JA88–92. The proposals are useful evidence, not enacted substitutes proved equally effective in every circumstance. The district court gave their availability nearly dispositive force instead of asking whether the chosen procedure burdens substantially more expression than its interests warrant.

XI. Administrative Charges

Government may recover expenses reasonably associated with administering expressive uses of public property; it may not raise general revenue from speech or vary a charge by message. Norvale's schedule attributes the \$240 amount to intake, site review, routing, coordination, and written decision preparation. It assigns \$45 to the review and transition planning associated with each paid presentation. The amounts are fixed without regard to identity or viewpoint. JA15–33, JA49–53.

The time records do not divide every employee minute by speaker. That evidentiary gap weakens the City's ultimate case, but a standardized fee need not mirror the exact labor consumed by each application. Averaging is inherent when some events require consultation and others resolve quickly. There is no evidence that the receipts support unrelated services or exceed aggregate program costs.

The burden on the Guild is genuine. Six authors produce a \$510 charge; across six comparable dates, the sum is \$3,060. Members operate with limited margins, and an added amount may alter invitations or seller participation. JA34–43. Yet financial consequence does not establish that a cost-based schedule is likely unconstitutional. The movant had to connect its hardship to a defect in the fee's design, not simply show that payment matters.

The district court inferred inadequate fit from the absence of speaker-by-speaker time accounting and variation in actual effort. That approach demands precision beyond the preliminary doctrine. On this record, the neutral schedule, identified work categories, and lack of revenue evidence prevent the Guild from clearly establishing likely success against the charges.

XII. Likely Irreparable Injury

The Guild demonstrated that its planning choices are time sensitive. Invitations, travel, honoraria, advertising, and book orders occur before a permit decision. A writer who cannot be confirmed may accept another event, and a missed February program cannot be reproduced exactly later. When a government rule likely violates the First Amendment, those losses can support irreparable injury.

The necessary premise is probable unlawfulness. Here the district court overstated that probability. No viewpoint review occurred, no complete application was denied, and no concrete substitution was rejected. The ordinance leaves the Guild able to conduct its fairs, offer paid programs, submit broad topics, and seek amendments. Other programming options exist, though we do not treat them as perfect replacements for Cedar Commons.

Fees are ordinarily monetary, but the Guild connects them to programming decisions rather than seeking reimbursement alone. That connection deserves weight. Still, the evidence does not identify a particular author or seller who withdrew because of the amount. The projected series total assumes the same number of paid presenters at every fair. Those facts show pressure, not the clear likelihood of imminent suppression the injunction analysis assigned them.

We do not hold that a plaintiff must wait for censorship or sacrifice an event before seeking relief. A credible present burden can suffice. We hold only that the combination of an untested amendment process, neutral standards, available programs, and a supported administrative schedule leaves the Guild short of the clear preliminary showing required on this record.

XIII. Equitable Balance

The district court described the City's harm principally as administrative inconvenience because the injunction preserves neutral safety powers. That account understates the practical difference between a unified prospective process and improvised requests under several general rules. Employees must decide what information may be collected, how simultaneous uses compare, and whether a change requires another review. Inconsistent treatment can harm organizers as well as the municipality.

Norvale does not rely on speculative violence. It relies on an affirmative responsibility to manage a shared downtown site before each gathering. Planning opportunities disappear as staffing and reservation dates pass. A later judgment cannot recreate the period when employees needed to coordinate a transition, loading interval, or service route. The City also faces contempt risk under an operative command that restrains the named ordinance while preserving overlapping subjects.

The Guild faces serious expressive interests, but the ordinance does not bar a topic, author, or viewpoint. It allows the events to proceed through a neutral application, and decisions must be written and operationally grounded. Amendments are available. Any concrete misuse can be challenged promptly. These safeguards reduce the likelihood and severity of interim harm.

Balancing the supported injuries, the Guild did not clearly show that equity requires disabling the process for all six dates. More focused relief might have addressed a demonstrated delay, fee hardship, or unlawful condition. The broad preliminary restraint instead displaced the entire enactment while assuming that scattered general authority would function as an equivalent system.

XIV. Public Interest

Constitutional expression and safe access both serve the public. Readers benefit from free author programs, and small sellers benefit from a venue that draws a community audience. Pedestrians, transit riders, nearby businesses, vendors, and persons needing emergency access benefit from clear advance planning. Neither side owns the public-interest inquiry.

Because the Guild has not clearly shown likely constitutional violation, the public interest does not favor suspending a democratically adopted, content-neutral coordinating rule at this stage. The ordinance identifies planned presentations without asking whether their ideas are controversial, directs staff to physical and resource concerns, demands written explanations, and forbids viewpoint discrimination. Those features serve predictable and evenhanded administration.

The peaceful history does not make the process pointless. Preventive coordination often explains why ordinary difficulties remain manageable. Nor may Norvale cite its responsibilities as a reason to burden speech without evidence. Here it supplied legislative findings, site materials, official declarations, pilot decisions, and incident records tied to the work the application organizes. JA23–33, JA44–64.

The district court could protect against an identified abusive application during the litigation. What it could not do on this showing was presume that direct logistical rules would be equally effective and then enjoin the whole paid-speaker enactment against an entire recurring series. The public interest, considered with the other factors, does not sustain that preliminary remedy.

XV. Rule 65(c) and Rule 65(d)

Norvale separately objects that the injunction lacks an express security decision and adequate operative detail. Rule 65(c) requires a reasoned exercise of discretion, even if a nominal amount or waiver is appropriate; Rule 65(d) demands terms that give fair notice without reconstruction from a separate memorandum. The January 23 order sets no security and restrains “enforcement” of a combined enactment while preserving overlapping operational categories. JA115–124.

Those objections have force, but *Pashby*'s corrective-remand course presupposes warranted preliminary protection. Because we reverse the antecedent entitlement determination, there is no interim command to preserve and refine. We therefore deny the City's separate corrective-remand target without approving the January wording or its silence on security. Any new injunction on remand must independently comply with Rules 65(c) and 65(d).

XVI. Disposition

We exercise jurisdiction under § 1292(a)(1) and deny mootness because the same ordinance governs four announced fairs still ahead. Although the programs are protected and viewpoint review remains forbidden, the Guild did not clearly establish the four preliminary requirements. The district court applied an unduly exacting fit inquiry and treated proposed alternatives as if Norvale bore a least-restrictive-means burden.

The January 23 injunction is reversed, and the case is remanded for proceedings on the unresolved complaint. We decide neither permanent relief nor a materially different application on a fuller record. The separate Rule 65 corrective-remand request is denied, and each side shall bear its own appellate costs. Judgment will take effect under the applicable appellate rules.

REVERSED AND REMANDED; REQUEST FOR SEPARATE RULE 65 CORRECTIVE REMAND DENIED.